

APR 25 1997



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 11875

EXPIRATION DATE: May 1, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. **GRANTEE:** Northwest Airlines  
St. Paul, MN
2. **PURPOSE AND LIMITATION:** This emergency exemption authorizes the one-time transportation in commerce, of certain consumer commodities, ORM-D, to be used in the recovery operations of flood affected areas. The transportation of these ORM-D materials is exempt from the Hazardous Materials Regulations except as specified herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Parts 171-180.
5. **BASIS:** This exemption is based on the application of Northwest Airlines dated April 25, 1997, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary to sustain life and property.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):** Consumer commodity, classed as ORM-D. See Paragraph 8.
7. **PACKAGING AND SAFETY CONTROL MEASURES:**
  - a. **PACKAGING** - The products must be contained in the original manufacturers packagings which must conform to the provisions of 49 CFR 173.24(b).
  - b. **OPERATIONAL CONTROLS** -
    - i. Loading of the aircraft must be conducted under the oversight of the Federal Aviation Administration (FAA).
    - ii. The packages must be secured within the aircraft to prevent movement during transportation.

29373

8. SPECIAL PROVISIONS:

a. Other hazardous materials may be loaded on the aircraft as authorized by the on-site FAA Dangerous Goods Inspector and acceptable to the airline.

b. Persons may offer Consumer commodities for transportation under the terms of this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS: Shipment will originate at St. Paul, MN. destined for Grand Forks, N.D.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:

APR 25 1997

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

\_\_\_\_\_  
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

APR 25 1997

Continuation of DOT-E 11875

Page 3

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA